TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
OCTOBER 24, 2022
MINUTES

STAFF REPORT

Present: Steven Wood, Chair, Steven Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Steven Wood, Julian Hopkins.
Absent: Cameron Swails.
Staff: Kara Browder, Lynnette Lynes

Mr. Wood called the meeting to order at 6:05 pm.

A. Approval of Agenda

Mr. Hopkins moved for approval of the agenda. Mr. Butner seconded the motion. All in favor.

B. Approval of Minutes

Mr. Hopkins moved for approval of the minutes. Mr. Butner seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There were no comments or correspondence.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-20-2022, 1190 Moss Bluff, TMS# 557-14-00-028. Request for relief from the strict application of §156.303 (C)Table to encroach 18 feet into a required 30-foot rear yard setback for a proposed porch addition.**

Ms. Browder reviewed staff comments with the Board.

- Mr. Barney Lynch, owners, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Butner moved for approval of the encroachment of the existing structure based on the findings that it is extraordinary and does not apply to other neighborhood properties, could prohibit use of the property, and would not be a detriment to the surrounding neighborhood. Mr. Hopkins seconded the motion. All in favor.*

- *Ms. Stevens moved for approval of the 30 foot encroachment based on the findings that there are extraordinary conditions with lot size, trees and the easement that prohibits where home can be built, denial would unreasonably restrict the property as the owner cannot get full use of buildable lot and is only using 32% of the lot, there is no detriment to the neighborhood as the property backs up to a golf course, there are lots of trees for screening and the neighbors are in favor of the request. Mr. Hopkins seconded the motion. Motion passed on a 4 to 2 vote with Mr. Butner, Mr. Branch, Mr. Hopkins, and Ms. Stevens in favor; Mr. Barrow and Mr. Wood opposed.*

2. Case V-23-2022, 1436 Winton Road, TMS# 560-07-00-011. Request for relief from the strict application of §156.111(D) to allow an accessory structure to be considered attached to the principal structure. Attaching to the principal structure allows the accessory structure to legally maintain its existing height.

- Ms. Browder reviewed staff comments with the Board.

- Mr. Zach Johnson, owner, reviewed the request with the Board.

- Mr. Darrell Beach, 1402 Cardiff Rd, stated that he is in favor of the request.

- There being no further comments, Mr. Wood closed the public comment.

- *Ms. Stevens moved for approval based on the findings that there are extraordinary conditions as they were approved for a building permit by the Town, the conditions do not apply to other properties in the vicinity as this error was not repeated for other properties, denia would unreasonably restrict utilization as the structure is built and would have to be torn down, the error was made by the Town, and there is no detriment as the neighbors are in favor. Mr. Butner seconded the motion. All in favor.*

3. Case V-24-2022, 327 Seewee Circle, TMS# 514-08-00-132. Request for relief from the strict application of §156.107(A)(2) to allow the placement of a generator within the side setback.

- Ms. Browder reviewed staff comments with the Board.

- Mr. Miles Barkley, owner, and Mr. John Crouch reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Hopkins moved for approval based on the findings that there are extraordinary conditions with strategical challenges and the other number of variances received in order to build the home, conditions do not apply to other property as other properties are not the same configuration and not in proximity to the marsh, denial would unreasonably restrict utilization as this is being done to have emergency power available during storm events, and would not be a detriment as the neighbors are in favor. Mr. Branch seconded the motion. All in favor.*

4. Case V-25-2022, 1028 Cummings Circle, TMS# 571-08-00-027. Request for relief from the strict application of §156.225 (C) to allow the removal of a Historic 27'' Oak tree.

- Ms. Browder reviewed staff comments with the Board.

- Mr. Nathanial Miller, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that the request does not meet all criteria, particularly that denial would not effectively prohibit or unreasonably restrict utilization of the property and if approved it would be a detriment to the neighborhood and public good as the requested tree is a protected tree species. Mr. Branch seconded the motion. All in favor.*

5. **Case V-26-22, 514 Deer Street, TMS# 532-09-00-127. Request for relief from §156.111(B)(3) and §156.303(Table) to allow an 18' encroachment into the front yard setback by an ADU. This request was previously approved by the board in 2017 and 2020.**

- Ms. Browder reviewed staff comments with the Board.

- Ms. Amber Aumnet, architect, reviewed the request with the Board.

- *Mr. Barrow moved for approval based on the findings that this was approved in 2020 and all legal requirements were met at that time. Mr. Butner seconded the motion. All in favor.*

H. Approval of Final Order

- The Board signed final orders.

There being no further business, the meeting adjourned at 7:30 pm.

Submitted by,
L. Lynes
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